

QADDISH, MOURNERS AND THE HALABI TRADITION

An early reference to Qaddish being recited in memory of the deceased is found in the Siddur of Rab 'Amram Gaon (9th century Babylonia) where the Hazzan (according to another version "they say Qaddish" referring to the mourners) recited Qaddish at the cemetery after the burial and the recitation of Sidduq HaDin (prayer for mourners). At that point in history we do not find a reference to Qaddish being recited in memory of the deceased other than at the time of the burial in the cemetery and perhaps only by the Hazzan.

The Or Zarua' (13th century Vienna) writes that in some places the orphan (mourner) recites the Qaddish towards the end of Shahrit (after En Kelo-henu) and he attributes that practice to a Midrash about Ribbi 'Aqiba who met a person who had already died but came back to this world. He told R 'Aqiba that he needed his own son to recite Bar'khu or Qaddish so that people will answer "Barukh Ad-onai etc" or "Y'he' Sh'meh Raba etc." in order to save his soul in the next world. R Yosef Qaro, (author of Shulhan 'Arukh- 16th century Safed) in his larger work known as the Bet Yosef (YD 376) quotes the same Midrash that he found in the Kol Bo (14th century Provence). In that version the man who died told R. 'Aqiba that he needed his own son to recite the Qaddish Batra (last Qaddish) or go up for Maftir and read the Haftarah to save his soul. Maran continued that based on that Midrash it is customary to recite the last Qaddish for a deceased parent for twelve months and go up for Maftir. And some are Hazzan for 'Arbit every Saturday night since that is when the wicked are returned to Gehinnam and that prayer might protect them. Then Maran quoted an opinion that a son also recites Qaddish for his deceased mother unless his father is still living and objects to his son reciting Qaddish during his lifetime. However later in the Bet Yosef (YD 403) Maran wrote that the custom of the world is to recite Qaddish in memory of a deceased mother even during his father's lifetime.

R Shem Tob Gaguine (20th century Jerusalem, Cairo, England) wrote in his work Keter Shem Tob (a seven volume work about customs and their reasons) that based on these sources it was established that an orphan (mourner) recites the Qaddish before 'Alenu L'Shabeah in Shahrit and 'Arbit, since these Qaddishim are followed by Bar'khu (volume 1-2 pg 110). By saying these Qaddishim he will lead the congregation to answer both "Amen Y'he' Sh'meh Raba etc" and "Barukh Ad-onai HaM'borakh etc." which is a tremendous merit. And the son's merit is also a credit to his father, as the Gemara (Sanhedrin 104) states that a son (through his actions) brings merit to his father...

However, R Gaguine writes that in practice it is customary for mourners to recite the following Qaddishim: in Shahrit (3); before Hodu (or before Barukh SheAmar), after Hoshi'enu, and before 'Alenu. In Minhah and 'Arbit before 'Alenu as well. Beyond that it is customary for the mourners to recite the Qaddish after Birkhat HaL'banah, after reading Tehillim, after a Siyum or a D'rashah, after a B'rit Milah or Pidyon HaBen, after Sidduq HaDin in the cemetery, and after the reading of the Sefer Torah.

In some communities mourners do not recite Qaddish on Shabbat. This is based on the teaching that the souls of the wicked are not in Gehinnam on Shabbat and therefore do

not need salvation on that day. However according to our custom mourners also recite Qaddish on Shabbat and Yom Tob. This is based on the Sha'ar haKavanot which was written by R Hayyim Vital (16th century Damascus and Safed) who was the main student of the ARI'ZAL. He wrote that he heard from his teacher (the ARI'ZAL) that Qaddish should also be recited in memory of a parent on Shabbat and Yom Tob in order to get their souls into Gan 'Eden and elevate them from level to level in Gan 'Eden.

R. Yosef Hayyim (Baghdad 1835-1909-author of the Ben Ish Hai) wrote in Rab Pe'alim (2:14) that "in these places the custom is that the Hazzan only recites Qaddish Titqabal, and the other Qaddishim, even the Qaddish after Yishtabah is recited by orphans (mourners) instead of the Hazzan." And the Ben Ish Hai supports this custom as he explained, that even though the only Qaddish that is really for the mourners is the Qaddish before 'Alenu L'Shabeah, "in any case it is customary in all of the congregations of Israel that orphans (mourners) recite all of the Qaddishim that are the obligation of the congregation, on behalf of the congregation, and with this there is benefit and enjoyment to the soul of the deceased, because the orphan (mourner) is saying Qaddish on behalf of the congregation. And this Misvah that the orphan (mourner) does by saying Qaddish on behalf of the congregation protects the soul of the deceased, and brings the soul great benefit..." Then in his Ben Ish Hai (VaYigash 1:16) he wrote, "In our city (Baghdad) their custom is to say all of the Qaddishim including the Qaddish after Yishtabah, those that are saying Qaddish in memory of their deceased." However in the Ben Ish Hai he raises some problems that are caused by the ignorant when practicing this custom. One problem is that the mourners who are reciting the Qaddish are unaware that they are reciting those Qaddishim on behalf of the entire congregation. Another problem is that they recite the Qaddish too quickly and even skip words. So he made a change in his city. Originally the Hazzan only recited the Qaddish after Yishtabah on Rosh Hashanah and Yom Kippur. The Ben Ish Hai instituted that practice on Shabbat and Yom Tob as well, but he allowed the mourners to continue reciting the Qaddish after Yishtabah on weekdays. In our community the Hazzan sings that Qaddish on Shabbat and Yom Tob (including Rosh HaShanah and Yom Kippur) so the mourners only recite it on weekdays anyway. Another solution to these problems is for the Hazzan to recite that Qaddish with the mourners so that the congregation is having the Qaddish recited properly in case the mourners are unable to do so.

R Yosef 'Abadi Sha'yo (born 1895 in Halab) wrote in his book on the customs of Halab that the "Qaddishim of the whole prayer are recited by the congregation in memory of the deceased, but Qaddish Titqabal is recited by the Hazzan alone." Later he writes that during the year of mourning the mourners "recite all of the Qaddishim except for Qaddish Titqabal" This is in contrast to the custom in Jerusalem where the mourners only recited the Qaddish before Hodu (or Barukh SheAmar), the Qaddish after Hoshi'enu and the Qaddish before 'Alenu (see Kaf HaHayyim Sofer OH 55:20).

So we see that the original custom of reciting only the last Qaddish before 'Alenu evolved into reciting every Qaddish 'Al Yisrael and Y'he' Sh'lama in most communities. And in Baghdad and Halab the custom extended to Hassi Qaddish as well. Growing up in the Syrian community in the late 1970's and 80's the custom was that mourners recited

every Qaddish except for Titqabal, as described by the Ben Ish Hai and R Yosef 'Abadi Sha'yo. However recently many have begun to abandon this custom and only recite 'Al Yisrael and Y'he' Sh'lama. But since our original custom was recorded and supported by both the Ben Ish Hai and R Yosef 'Abadi Sha'yo, we should not change our original custom. It is a legitimate practice and we should maintain it.